

25SMCV04737 25SMCV04737

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV04737 Hearing Date: August 13, 2026 Dept: N

TENTATIVE RULING

Defendant Jennifer Kashdan's Motion for Order Compelling Plaintiff, Sarkis Mesrobian, to Answer Form Interrogatories, Set No. One, is DENIED as MOOT.

Defendant Jennifer Kashdan's Motion for Order Compelling Plaintiff, Sarkis Mesrobian, to Answer Special Interrogatories, Set No. One, is DENIED as MOOT.

Defendant Jennifer Kashdan's Motion for Order Compelling Plaintiff, Sarkis Mesrobian, to Respond to Demand for Production, Set No. One, is DENIED as MOOT.

Defendant Jennifer Kashdan's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,580, payable by Plaintiff Sarkis Mesrobian and Plaintiff's counsel to Defendant Jennifer Kashdan and defense counsel within thirty (30) days of entry of this order.

Defendant Jennifer Kashdan to give notice.

REASONING

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subds. (b), (c).) Failure to timely respond waives all objections, including privilege and work product. (Code Civ. Proc., § 2030.290, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. (Ibid.) There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. (See Code Civ. Proc., § 2030.290.) Where the motion seeks only a response to the interrogatories, no showing of "good cause" is required. (Contra Code Civ. Proc., § 2030.300, subd. (b)(1) [good cause requirement for motion to compel further responses].) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.)

Similarly, where there has been no timely response to a Code of Civil Procedure section 2031.010 demand, the demanding party must seek an order compelling a response. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to timely respond waives all objections, including privilege and work product. (Code Civ. Proc., § 2031.300, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. (Ibid.)

There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. (See Code Civ. Proc., § 2031.300.) Where the motion seeks only a response to the inspection demand, no showing of “good cause” is required. (Contra Code Civ. Proc., § 2031.310, subd. (b)(1) [good cause requirement for motion to compel further responses].)

Defendant Jennifer Kashdan (“Defendant”) served Plaintiff Sarkis Mesrobian (“Plaintiff”) with her Form Interrogatories, Set No. One, Special Interrogatories, Set No. One, and Demand for Production, Set No. One, on December 11, 2025. (Mots., Davtyan Decls. ¶ 2.) Defense counsel communicated with Plaintiff’s counsel to obtain the responses, but responses were not received as of the date of filing each motion. (Mots., Davtyan Decls. ¶¶ 3-4.) However, on August 12, 2026, Plaintiff filed a Notice of Service of Verified Discovery Responses as to each of the identified set of requests.

Accordingly, Defendant Jennifer Kashdan’s Motion for Order Compelling Plaintiff, Sarkis Mesrobian, to Answer Form Interrogatories, Set No. One, Motion for Order Compelling Plaintiff, Sarkis Mesrobian, to Answer Special Interrogatories, Set No. One, and Motion for Order Compelling Plaintiff, Sarkis Mesrobian, to Respond to Demand for Production, Set No. One, are DENIED as MOOT.

If a motion to compel responses to interrogatories or requests for production is filed, the Court shall impose a monetary sanction against the losing party “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c); 2031.300, subd. (c).) Further, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

Defendant requests \$3,609.85 in monetary sanctions for the three motions. The Court finds that monetary sanctions are proper, given that responses were served the day before the hearing on these motions, but the Court reduces the amount to \$1,580, representing two hours spent preparing each motion and one spent appearing at the hearing on the motions, totaling seven hours at the rate of \$200 per hour, as well as three filing fees. Thus, Defendant Jennifer Kashdan’s Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,580, payable by Plaintiff Sarkis Mesrobian and Plaintiff’s counsel to Defendant Jennifer Kashdan and defense counsel within thirty (30) days of entry of this order.